

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
WALLACE STEVENSON,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NYPD DETECTIVE JEREMY DEMARCO and
NYPD SERGEANT BENJAMIN NELSON,

Defendants.

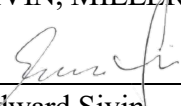
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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 22, 2020

SIVIN, MILLER & ROCHE, LLP

By


Edward Sivin

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

The City of New York: c/o James Johnson, Esq., 100 Church St., New York, NY 10007

Det. Jeremy Demarco, c/o Narcotics Borough Brooklyn South

Sgt. Benjamin Nelson, c/o

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

----- X
WALLACE STEVENSON,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE JEREMY DEMARCO and
NYPD SERGEANT BENJAMIN NELSON,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN, MILLER & ROCHE, LLP, as and for his
complaint herein, alleges as follows, upon information and belief:

THE PARTIES

1. That at all times herein mentioned, plaintiff was and is a citizen of the United States and a resident of the State of New York.
2. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That prior to the institution of this action and within ninety (90) days from the dates when the state-law causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

4. That at all times herein mentioned, the City operated, controlled, managed, maintained, and supervised the New York Police Department (hereinafter the “NYPD”).

5. That at all times herein mentioned, defendant NYPD Detective Jeremy Demarco (hereinafter “Demarco”) was and is a detective employed by the NYPD.

6. That at all times herein mentioned, Demarco was acting within the course and scope of his employment with the NYPD.

7. That at all times herein mentioned, Demarco was acting under color of state law.

8. That at all times herein mentioned, defendant NYPD Sergeant Benjamin Nelson (hereinafter “Nelson”), was and is a sergeant employed by the NYPD.

9. That at all times herein mentioned, Nelson was acting within the course and scope of his employment with the NYPD.

10. That at all times herein mentioned, Nelson was acting under color of state law.

THE FACTS

11. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

12. That on or about April 9, 2019, in the County of Queens, City and State of New York, NYPD officials, including but not limited to Demarco and Benjamin (hereinafter referred to collectively as “the officers”), without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime or criminal violation, forcibly seized plaintiff and the motor vehicle that plaintiff was operating.

13. That during the course of the aforementioned seizure, the officers also physically detained and used excessive force and threatened the use of excessive force against claimant, and forcibly placed and kept plaintiff in handcuffs.

14. That during the course of the aforementioned seizure, the officers also searched plaintiff and the vehicle that plaintiff was operating, without a warrant and without plaintiff's consent.

15. That after forcibly seizing plaintiff, the officers formally arrested plaintiff without a warrant and without probable cause, and then imprisoned plaintiff and/or caused plaintiff to be imprisoned at various locations, including police vehicles, a police precinct, and Central Booking.

15a. That Benjamin formally approved the arrest of plaintiff.

16. That on or about April 9, 2019, the officers also charged and/or caused plaintiff to be charged with the felony of Criminal Possession of a Controlled Substance, a crime of which plaintiff was innocent and of which the officers knew claimant to be innocent.

17. That the officers lacked probable cause to believe that plaintiff was guilty of the crime with which he was charged.

18. That in support of the aforesaid prosecution, the officers also fabricated evidence and conveyed false information and evidence to prosecutors.

19. That the false information and evidence that the officers conveyed to prosecutors was likely to influence a court or jury in connection with a determination as to plaintiff's guilt or innocence.

20. That as a result of this false information and evidence, and the prosecution, plaintiff suffered a denial of his liberty by being charged with various criminal offenses and incarcerated.

21. That the aforesaid actions of the officers were intentional, spiteful, and malicious in nature.

22. That on or about April 10, 2019, all criminal charges against plaintiff were dismissed and the criminal proceeding terminated favorably to plaintiff.

23. That at all times herein mentioned, each of the officers observed the unlawful actions of their fellow officers, had the ability and opportunity to intervene to prevent or stop those unlawful actions, and intentionally and deliberately failed to do so.

24. That as a result of the foregoing, plaintiff suffered and continues to suffer physical, emotional, and psychological injuries, loss of liberty, embarrassment, humiliation, and economic loss.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery Under NY State Law)

25. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

26. That the aforementioned actions of the officers constitute an assault and battery of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/False Imprisonment Under NY State Law)

27. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

28. That the aforementioned actions of the officers constitute a false arrest and false imprisonment of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Malicious Prosecution Under NY State Law)

29. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

30. That the aforementioned actions of the officers constitute a malicious prosecution of plaintiff, for which the officers are liable under NY State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION AGAINST DEMARCO and BENJAMIN
(42 U.S.C. § 1983 Claim Arising From Fourth and Fourteenth Amendment Violations)

31. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

32. That the aforementioned actions of the officers, including Demarco and Benjamin, in searching and seizing, assaulting and battering, improperly detaining, falsely arresting, and maliciously prosecuting plaintiff, constitute illegal searches and seizures and deprivations of liberty of plaintiff in violation of rights guaranteed to plaintiff under the Fourth and Fourteenth Amendments to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION AGAINST DEMARCO and BENJAMIN
(42 U.S.C. § 1983 Claim Based On Denial Of Right To Fair Trial)

33. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

34. That the aforesaid actions by the officers, including Demarco and Benjamin, constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the

Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION AGAINST DEMARCO and BENJAMIN
(42 U.S.C. § 1983 Claim based on Failure to Intervene)

35. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

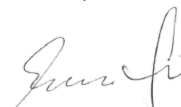
36. That the officers' failures to intervene to prevent and/or stop the improper and unconstitutional conduct of their fellow officers entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

37. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Demarco and Benjamin, and attorney's fees against defendants Demarco and Benjamin pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
June 22, 2020

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By  _____
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

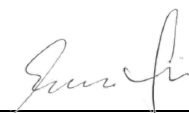
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
June 22, 2020



EDWARD SIVIN

Index No. Year 2020

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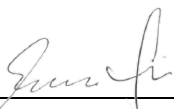
VERIFIED COMPLAINT

SIVIN, MILLER & ROCHE, LLP

Attorneys for Plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300
FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
June 22, 2020